

Subject: Settlement decision regarding a complaint related to telephone calls for direct marketing purposes despite the exercise of the right to object

The Contentious Chamber of the Data Protection Authority, composed of Mr. Hielke HIJMANS, president sitting alone.

Considering Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter referred to as "GDPR";

Considering the Law of December 3, 2017, establishing the Data Protection Authority (hereinafter "LCA");

Considering the internal regulations as approved by the House of Representatives on December 20, 2018, and published in the Belgian Official Gazette on January 15, 2019;

Considering the documents in the file;

Has made the following decision regarding:

The complainant:

X, hereinafter referred to as "the complainant"

The defendant: Y, hereinafter referred to as "the defendant"

1 The new internal regulations of the DPA, following the amendments made by the Law of December 25, 2023, amending the Law of December 3, 2017, establishing the Data Protection Authority (LCA), came into effect on June 1, 2024.

In accordance with Article 56 of the Law of December 25, 2023, it applies only to complaints, mediation files, requests, inspections, and procedures before the Contentious Chamber initiated from that date: <https://www.autoriteprotectiondonnees.be/publications/reglement-d-ordre-interieur-de-l-autorite-de-protection-des-donnees.pdf>.

Files initiated before June 1, 2024, such as in this case, are subject to the provisions of the LCA not amended by the Law of December 25, 2023, and the internal regulations as they existed before that date.

Decision on the merits 147/2024 — 2/18

I. Facts and procedure

I.1.

The complaint

1. On December 9, 2019, the complainant filed a complaint with the Data Protection Authority against the defendant.

2. The facts underlying the complaint consist of direct marketing calls that continued despite the complainant exercising her right to object.

3. On April 4, 2019, the complainant exercised her right to object (Article 21.2 of the GDPR) following unsolicited calls received and made, according to the complainant, by the defendant.

4. On the same day, the defendant confirmed to the complainant that she had recorded the request to object in her database. Furthermore, the defendant asked the complainant to provide the calling phone number, considering the fraud and phishing activities that prevail. Thus, the defendant expressed the idea that the calling phone number might not belong to her but rather to a third party attempting to impersonate her.

5. Still on the same day, the complainant responded that she could not provide the defendant with the calling phone number, given that the call had been made using the "masked call" function.

6. On December 3 and 6, 2019, the complainant sent reminders to the defendant.

7. On the same day, the defendant replied that in order to initiate an investigation, she needed, at a minimum, to know the calling phone number.

8. On January 7, 2020, the complaint was declared admissible by the First Line Service based on Articles 58 and 60 of the LCA, and the complaint was forwarded to the Contentious Chamber under Article 62, § 1 of the LCA.
9. On January 28, 2020, in accordance with Article 96, § 1 of the LCA, the request from the Contentious Chamber to conduct an investigation was forwarded to the Inspection Service, along with the complaint and the inventory of documents.
10. On December 9, 2020, the investigation by the Inspection Service was concluded, the report was attached to the file, and it was transmitted by the general inspector to the President of the Contentious Chamber (Article 91, § 1 and § 2 of the LCA).
- The report contains findings related to the subject of the complaint and concludes that:
1. The defendant failed to comply with Articles 5.1.a, 6.1, and 21.3 of the GDPR in that, by not responding to the exercise of the complainant's right to object, she has
- Decision on the merits 147/2024 — 3/18
1. The defendant processed the personal data of the latter irregularly, and this for direct marketing purposes;
 2. The defendant failed to comply with Article 12.2 of the GDPR in that it did not fulfill its duty to facilitate the exercise of the rights of the data subject;
 3. The defendant failed to comply with Article 25 of the GDPR in that the management of its CRM database does not "meet the principles of data protection by design and data protection by default."
11. On April 21, 2021, the Contentious Chamber decides, pursuant to Article 95, § 1, 1° and Article 98 of the LCA, that the case may be dealt with on the merits.
12. On the same date, the parties concerned are informed by registered mail of the provisions as set out in Article 95, § 2 as well as Article 98 of the LCA. They are also informed, pursuant to Article 99 of the LCA, of the deadlines for submitting their conclusions. The deadline for receiving the defendant's response conclusions was set for May 19, 2021, that for the complainant's reply conclusions for June 16, 2021, and that for the defendant's rejoinder conclusions for July 7, 2021.
13. On April 21, 2021, the complainant agrees to receive all communications related to the case electronically.
14. On April 22, 2021, the defendant agrees to receive all communications related to the case electronically. In the same email, it requests a copy of the file (Article 95, §2, 3° LCA), which is transmitted to it on May 4, 2021.
15. On April 30, 2021, the defendant again requests a copy of the file and consequently requests an extension of the deadlines for submitting conclusions.
16. On May 6, 2021, the Contentious Chamber agrees to extend the deadlines for submitting conclusions by 3 weeks. Thus, the new deadline for receiving the defendant's response conclusions is set for June 9, 2021, that for the complainant's reply conclusions for July 7, 2021, and that for the defendant's rejoinder conclusions for July 28, 2021.
17. On June 9, 2021, the Contentious Chamber receives the response conclusions from the defendant.
18. On July 28, 2021, the Contentious Chamber receives an email from the complainant confirming that no conclusions have been submitted.

2 Abbreviation for Customer Relationship Management, known as "Gestion de la relation client" in French

3 Investigation report, p. 13.

Decision on the merits 147/2024 — 5/18

Such an appeal may be introduced by means of an interlocutory request which must contain the information listed in Article 1034ter of the Judicial Code⁴. The interlocutory request must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code⁵, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

(sé). Hielke HIJMANS

President of the Contentious Chamber

4 The request must contain under penalty of nullity:

1° the indication of day, month, and year;

2° the name, first name, and address of the applicant, as well as, where applicable, their status and national register number or business number;

3° the name, first name, address, and, where applicable, the status of the person to be summoned;

4° the subject and a brief summary of the grounds for the request;

5° the indication of the judge who is seized of the request;

6° the signature of the applicant or their lawyer.

5 The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed at the registry.

Decision on the merits 147/2024 — 6/18

Your reference

Our reference

Annex

Date

/

DOS-2019-06239

/

21/10/2024

Subject: application of Article 100, §1, 4° LCA – Proposal for a settlement in the context of the complaint filed by X against Y.

Dear Sir/Madam,

Hereby, the Contentious Chamber informs you that it has been seized of a complaint relating, in summary, to unsolicited telephone calls for marketing purposes, in which the complainant exercised their right to object, without success. An investigation has also been conducted by the Inspection Service, the report of which was submitted to the Contentious Chamber on 09/12/2020.

Due to the handling of a very large number of cases, the Contentious Chamber decides, pursuant to Article 100, §1, 4° of the law establishing the Data Protection Authority ("LCA")⁶, to proceed with the proposal for a settlement by this letter ("settlement proposal"). In exercising its powers, the Contentious Chamber must make prudent choices in order to handle socially significant cases with the necessary diligence.

6 M.B., January 10, 2018.

Contentious Chamber

Annex – settlement proposal

To the attention of Y

Represented by Master [...]

By email: [...]

Defendant

By email:

To the attention of X

By email: [...]

Complainant

Secretariat

Address: Rue de la presse 35, 1000 Brussels

Tel.: +32 (0)2 274 48 56

E-mail: litigationchamber@apd-gba.be

Decision on the merits 147/2024 — 8/18

Despite the confirmation dated April 4, 2019, of the consideration of the complainant's opposition, Y continued to process the complainant's personal data for direct marketing purposes.

The complainant indeed continued to receive telemarketing calls on her mobile number from call centers acting on behalf of Y at least until March 3, 2020 (step 3 / document 7).

In his letter dated June 29, 2020 (step 8 / document 13), the DPO provides a very convoluted justification regarding the continued processing of the complainant's data for direct marketing purposes. He essentially states that:

- the complainant's subscription request of November 6, 2018, did not result in the creation of a CRM file (note: but rather a customer account!) within Y;
- her subscription modification request of May 29, 2019, did, however, result in the creation of a CRM file in her name;
- the opposition request of April 4, 2019, being prior to the insertion of the complainant's data into the CRM file, did not pertain to the CRM file in her name but to the CRM file in her mother's name (!) for which the complainant's contact data was included;
- the creation of a CRM file in the complainant's name after her opposition request would justify the continuation of telemarketing towards her.

The Inspection Service considers that the very peculiar management of Y's CRM database cannot justify ignoring the complainant's opposition request.

The argument that the complainant's opposition request was only reflected for the customer account in her mother's name while the complainant herself held a Y subscription in her name is unacceptable and does not excuse Y's shortcomings in this matter. It is worth noting in this regard that the complainant's mother no longer had a Y subscription at the time of the events (step 6 / document 11).

Decision: Based on these elements, the Inspection Service finds that Y did not respect the complainant's right to oppose and continued to unlawfully process her data for direct marketing purposes, contrary to Articles 5.1.a, 6.1, and 21.3 of the GDPR.

Decision on the merits 147/2024 — 9/18

a.2. Second finding

The second finding made by the Inspection Service is drafted as follows:

"Finding 2: Failure to facilitate the exercise of the complainant's rights

In its email dated December 6, 2019, in response to the complainant's third complaint regarding a new call from a call center acting on behalf of Y for direct marketing purposes, the Y Data Protection Office asked the complainant to provide the call center's phone number in order to intervene (cf. step 1 / document 1).

However, the complainant had previously explained during the email exchange with the Y Data Protection Office that the calls were coming from withheld numbers.

Furthermore, by responding in this manner, the DPO service clearly did not take the trouble to check in Y's database the processing of the complainant's personal data that continued to be carried out for direct marketing purposes.

By asking the complainant to provide the (withheld) call number of a call center operating on its behalf while neglecting to verify in its database the actual processing of the complainant's data, Y failed in its obligation to facilitate the exercise of the rights of the data subject.

Decision: Based on these elements, the Inspection Service finds that Y did not comply with Article 12.2 of the GDPR in this instance."

a.3. Third finding

The third finding made by the Inspection Service is drafted as follows:

"Finding 3: Absence of data protection by design and data protection by default

Y hides behind the very confusing management of its CRM database to attempt to explain the continued processing of the complainant's data for direct marketing purposes.

Decision on the merits 147/2024 — 10/18

The explanations provided by the DPO - summarized in finding 1 - sufficiently demonstrate that the management of Y's CRM database does not comply with the principles of data protection by design and data protection by default.

Decision: Based on these elements, the Inspection Service finds that Y violates Article 25 of the GDPR.

b) Conditions of the settlement proposal

b.1. Settling party

Condition 1

Complaints expressed in the complaint:

In the complaint, the complainant states as follows:

"I am a customer of Y and have been receiving calls from their call center for some time. I therefore informed the DPO of Y of my intention to exercise my right to object (Article 21) and my wish to no longer receive these unsolicited calls.

The Privacy service then confirmed to me that they were taking the necessary steps to ensure that my personal data would no longer be used for these purposes. Unfortunately, since my first request in April 2019, I am still receiving calls from the Y call center.

[...]

Y relies on legitimate interest and Article 6 to process my personal data. I constantly receive calls from a private number from a Y call center. This call center knows my personal information and my current contracts with Y."

Legal provisions invoked:

Article 5.1.a of the General Data Protection Regulation (GDPR) states that:

"1. Personal data must be:

a) processed lawfully, fairly, and transparently in relation to the data subject (lawfulness, fairness, transparency);"

Article 6.1 of the GDPR states that:

"1. Processing is lawful only if, and to the extent that, at least one of the following conditions is met:

a) the data subject has consented to the processing of their personal data for one or more specific purposes;

Decision on the merits 147/2024 — 11/18

b) processing is necessary for the performance of a contract to which the data subject is a party or for the performance of pre-contractual measures taken at the request of the data subject;

c) processing is necessary for compliance with a legal obligation to which the controller is subject;

d) processing is necessary to protect the vital interests of the data subject or of another natural person;

e) processing is necessary for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;

f) processing is necessary for the purposes of the legitimate interests pursued by the controller or by a third party, except where such interests are overridden by the interests or fundamental rights and freedoms of the data subject which require protection of personal data, in particular where the data subject is a child.

Point f) of the first paragraph does not apply to processing carried out by public authorities in the performance of their tasks."

Article 12.2 of the GDPR states that:

"The controller shall facilitate the exercise of the rights conferred on the data subject by Articles 15 to

22. In the cases referred to in Article 11, paragraph 2, the controller shall not refuse to comply with the request of the data subject to exercise the rights conferred on them by Articles 15 to 22, unless the controller demonstrates that it is not in a position to identify the data subject."

Article 21.3 of the GDPR states that:

"When the data subject objects to processing for direct marketing purposes, the personal data shall no longer be processed for such purposes."

Article 25 of the GDPR states that:

"1. Taking into account the state of the art, the costs of implementation, and the nature, scope, context, and purposes of the processing as well as the risks, varying in probability and severity, that the processing poses to the rights and freedoms of natural persons, the controller shall implement, both at the time of the determination of the means of processing and at the time of the processing itself, appropriate technical and organizational measures, such as pseudonymization, designed to implement the data protection principles effectively and to integrate the necessary safeguards into the processing to meet the requirements of this Regulation and protect the rights of the data subject."

Decision on the merits 147/2024 — 14/18

c.1. Administrative procedure of the Litigation Chamber of the Data Protection Authority

The present settlement proposal is made without prejudicial acknowledgment and does not in any way bind the Litigation Chamber regarding the position it is free to choose in the event of a refusal of the settlement proposal. In this regard, the Litigation Chamber refers in particular to the powers conferred upon it to ascertain or not the existence of an infringement and to impose sanctions, if necessary, under European law¹² and Belgian law¹³. In this case, it is up to the Litigation Chamber to pursue the matter by other means, in cases where the conditions are not accepted by the defendant or where the Litigation Chamber decides to withdraw its settlement proposal.

When the settlement proposal is refused by the party to whom it is addressed, the Litigation Chamber continues to process the case.

It is understood that the procedure before the Litigation Chamber cannot be interpreted in a criminal sense; the settlement provided for in Art. 100, §1, 4° of the LCA cannot be confused with any of the alternative dispute resolution methods as they exist in criminal law¹⁴. In conclusion, the settlement has, in light of the LCA, a *sui generis* character.

¹² See Article 58 of Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, on the protection of natural persons with regard to the processing of personal data and on the free movement of such data, and repealing Directive 95/46/EC (General Data Protection Regulation), hereinafter "GDPR";

¹³ See Article 100 LCA.

¹⁴ See in particular Articles 216bis and 216ter of the Code of Criminal Procedure relating to the extinction of public action for certain offenses, subject to the fulfillment of certain conditions such as the payment of a sum of money, as well as the execution of measures and compliance with conditions; A. RIGLOLET, *Settlement Contract*, Larcier, Brussels, 2021; A. RAES, T. VAN WYNSBERGE, S. DE KEULENAER, E. DEVEUX, K. DECRAMER, A. DELADRIERE, "On the expanded amicable settlement: a 'value-added' or 'win-win' situation? Evaluation of practice.", *Panopticon*, no. 36(2), 2015, p. 88, M. FERNANDEZ-BERTIER and N. VAN DER EECKEN, "The expanded criminal settlement declared unconstitutional: towards a motivation for the settlement and sufficient and effective judicial control", *Business Criminal Law*, 2016, no. 3, (213)213.

- Procedural elements
- Deadlines
- Substantive conditions
- 1. Settlement proposal
 - Written requests
 - Oral exchanges
 - Adaptation of conditions

- Extension of deadlines
2. Settlement discussions
 - Consolidation of steps 1 and 2
 - Possibilities for appeal, specifically for third parties
 - Transparency of steps 1 and 2
 3. Formal settlement decision

Decision on the merits 147/2024 — 15/18

c.2. Scope of the settlement

Furthermore, the Litigation Chamber states the specific facts situated in time and space on which this settlement proposal is based. Although it is not concluded here and now to ascertain the existence of infringements by the Litigation Chamber within the framework of this settlement proposal, it remains that the latter is conditioned by the facts stated in the complaint, which the complainant alleges. Therefore, the settlement proposal concerns certain facts precisely delineated in time, all being considered in a specific technical context. Facts that fall outside this strict scope are not taken into account for the settlement. The disputed period thus lies between the date of filing the complaint and the date of the settlement decision following this present proposal.

c.3. Steps and elements of the settlement procedure

The general framework of the settlement procedure of the Litigation Chamber is as follows:

1. The settlement under the LCA is made between:
 - On the one hand, the Litigation Chamber, which commits to ending the procedure, thereby waiving the imposition of any corrective measures;
 - And, on the other hand, the settling party, which commits to paying a sum of money and/or complying with certain additional conditions.
2. The settlement involves an acknowledgment of the facts by the defendant, but not an acknowledgment of the alleged breaches of the law in force.
3. The scope of the settlement is in any case limited to the facts that occurred during a strictly defined period. The settlement proposal or, where applicable, the settlement decision, clearly establishes this period.
4. The complainant had the opportunity to express their views on the settlement proposal, which was communicated to them on 20/09/2024.¹⁵ Nevertheless, the complainant did not respond within the prescribed time.
5. A settlement is formalized by a settlement decision, which transparently outlines the course of the procedure leading up to it and explicitly includes all the terms of the initial and modified settlement proposal following the

¹⁵ In light of Article 77 of the General Data Protection Regulation, the complainant has a broader role than in settlement procedures before other regulators, see for example the simple communication to the complainant in the settlement procedure before the Belgian Competition Authority, cf. Article IV.59 in fine of the Economic Law Code of 28/02/2013 (M.B. 29/03/2013).

Decision on the Merits 147/2024 — 16/18

negotiations (the settlement proposals being in principle attached to the settlement decision).

6. The complainant and the defendant retain the right to comment, in principle in writing, on the settlement proposal and its content.
7. A rejected or unsuccessful settlement does not prevent a new settlement proposal from being made at a later stage in the same case. Indeed, it is up to the Contentious Chamber to assess the appropriateness of exercising its powers, including the fact of proposing a settlement.

d) Written and Oral Exchanges with the Parties

c.1.: Written Exchanges

The settlement proposal constitutes the starting point of the settlement procedure. However, the conditions of this settlement procedure may be adapted during it, particularly if this allows for

improvements regarding personal data protection legislation. Requests for adaptation do not necessarily lead to an extension of deadlines.

If they wish, the parties may submit their suggestions for adaptations in writing to the Contentious Chamber. It is up to the latter to incorporate these suggestions into the settlement proposal.

In this regard, the parties are encouraged to maintain a constructive attitude. The Contentious Chamber expects that the suggestions demonstrate reasonableness and proportionality.

c.2. Oral Exchanges

Each party is free to request that the Contentious Chamber provide oral explanations regarding the settlement proposal or subsequent elements, with the opportunity to follow up being left to the discretion of the Contentious Chamber.¹⁶ It goes without saying that this is merely a favor that the Contentious Chamber may offer, and that it may make this choice if it proves effective.

¹⁶ "Amicable settlements" constitute a common legal practice in the regulatory landscape, particularly compare this with the settlement procedure before the Belgian Competition Authority defined in Articles IV.55 et seq. ("Section 5 – Settlement Procedure") of the Economic Law Code of February 28, 2013 (M.B. 29/03/2013).

Decision on the Merits 147/2024 — 17/18

In such a case, a record will be established and will only report, in principle, the content of the oral exchanges.

Each party is free to participate in these oral exchanges. These are strictly confidential, and their content may not be disclosed to third parties;

e) Deadlines

The defendant must respond to the present settlement proposal by 22/11/2024.

f)

The Existence of Other Data Controllers and/or Processors

This settlement proposal is addressed solely to Y.. No position is taken, by means of this, regarding the existence of other actors, nor to what extent they may be held liable.

g) Validation of the Settlement

When the settlement proposal transforms into a settlement decision by explicit acceptance of the party to whom the said proposal is addressed within the aforementioned deadline, it may in any case be subject to appeal by the "complainant party."¹⁷

The settlement decision does not affect the right of individuals who have suffered damages to claim compensation before the civil court under, among other things, Article 82 of the GDPR.

h) Appeal Against the Settlement Proposal

Based on Article 108, §1 of the LCA, an appeal may be made against this settlement proposal within thirty days from its notification, to the Market Court (Court of Appeal of Brussels) – with the Data Protection Authority as the defendant.

Such an appeal may be introduced by means of an interlocutory request which must contain all the information listed in Article 1034ter of the Judicial Code¹⁸. The interlocutory request must be filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

¹⁸ The request contains under penalty of nullity:

1° the indication of the day, month, and year;

Decision on the Merits 147/2024 — 18/18

filed with the registry of the Market Court in accordance with Article 1034quinquies of the Judicial Code¹⁹, or via the e-Deposit information system of the Ministry of Justice (Article 32ter of the Judicial Code).

Respectfully,

(signed) Hielke Hijmans

President of the Contentious Chamber

2° the name, first name, domicile of the applicant, as well as, where applicable, their qualifications and national register number or business number;

3° the name, first name, domicile and, where applicable, the quality of the person to be summoned;

4° the subject and a brief summary of the grounds of the request;

5° the indication of the judge who is seized of the request;

6° the signature of the applicant or their lawyer.

19 The request, accompanied by its annex, is sent, in as many copies as there are parties involved, by registered letter to the clerk of the jurisdiction or filed at the registry.